

BEFORE THE
FEDERAL MARITIME COMMISSION

RECEIVED

2016 SEP 12 PM 2:58

Docket No. 15-08

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

GENERAL MOTORS LLC

Complainant,

v.

NIPPON YUSEN KABUSHIKI KAISHA;
WALLENIUS WILHELMSSEN LOGISTICS AS; and
EUKOR CAR CARRIERS INC.

Respondent.

JOINT MOTION TO SEAL CONFIDENTIAL SETTLEMENT AGREEMENT

Pursuant to Federal Maritime Commission Rule of Practice and Procedure 5, 46 C.F.R. § 502.5, Complainant General Motors LLC (“GM”) and specially appearing Respondent Nippon Yusen Kabushiki Kaisha (collectively, GM and NYK are the “Settling Parties”) jointly move to seal the entirety of **CONFIDENTIAL EXHIBIT A** to the Settling Parties’ Joint Motion and Memorandum for Approval of Settlement Agreement, Dismissal With Prejudice of the Complaint Against Nippon Yusen Kabushiki Kaisha, and Treatment of Settlement Agreement as Confidential, dated September 7, 2016. **CONFIDENTIAL EXHIBIT A** to that motion is a copy of the Settlement Agreement (the “Settlement Agreement”) between the Settling Parties.

The entire contents of the Settlement Agreement are of a sensitive and confidential nature, and strict confidentiality was a material and necessary element of the Settlement Agreement. The entire Settlement Agreement could therefore be compromised by a breach of

confidentiality. For these reasons, and for those set forth in the Settling Parties' Joint Motion and Memorandum for Approval of Settlement Agreement, Dismissal With Prejudice of the Complaint Against Nippon Yusen Kabushiki Kaisha, and Treatment of Settlement Agreement as Confidential, the Settling Parties move to seal the Settlement Agreement in its entirety.

Dated: September 12, 2016

Respectfully submitted,

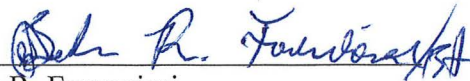


Daniel A. Sasse
Chahira Solh
Ryan C. Wong
CROWELL & MORING LLP
3 Park Plaza, 20th Floor
Irvine, California 92614
Telephone: (949) 263-8400
Facsimile: (949) 263-8414
E-mail: dsasse@crowell.com
csolh@crowell.com
rwong@crowell.com

Kent A. Gardiner
CROWELL & MORING LLP
1001 Pennsylvania Avenue, N.W.
Washington, D.C. 20004
Telephone: (202) 624-2500
Facsimile: (202) 628-5116
E-mail: kgardiner@crowell.com

Deana E. Rose
MANELLI SELTER PLLC
1725 I Street, NW, Suite 300
Washington, D.C. 20006
Telephone: (202) 261-1000
Facsimile: (202) 887-0336
E-mail: drose@mdslaw.com

Counsel for Complainant General Motors LLC



John R. Fornaciari
Robert M. Disch

BAKER & HOSTETLER LLP
1050 Connecticut Avenue, N.W., Suite 1100
Washington, D.C. 20036
Telephone: (202) 861-1612
Facsimile: (202) 861-1783
E-mail: jfornaciari@bakerlaw.com

*Counsel for Specially Appearing Respondent
Nippon Yusen Kabushiki Kaisha*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document on all parties of record by electronic mail, and submitted a copy via U.S. mail to each such person.

DATED: September 12, 2016



Chahira Solh
CROWELL & MORING LLP
3 Park Plaza, 20th Floor
Irvine, CA 92614
Telephone: (949) 263-8400
Facsimile: (949) 263-8414
E-mail: csolh@crowell.com

Counsel for Complainant General Motors LLC